

HOUSE BILL 299

By Reedy

AN ACT to amend Tennessee Code Annotated, Title 49,
relative to higher education.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-7-102(a), is amended by designating the existing language as subdivision (1) and adding the following as subdivision (2):

(2) Except as provided in subsection (e), every dependent child in this state under twenty-three (23) years of age, whose parent sustained, while serving honorably as a member of the United States armed forces during a qualifying period of armed conflict, a service-connected disability determined by the veteran's administration to constitute a one hundred percent (100%) permanent total disability, or the spouse of such veteran, is entitled to a waiver of tuition, maintenance fees, student activity fees, and required registration or matriculation fees and must be admitted without cost to any of the institutions of higher education owned, operated, and maintained by the state.

SECTION 2. Tennessee Code Annotated, Section 49-7-102(b)(1), is amended by adding the following as a new subdivision:

(D) Present official certification from the United States government that the parent (father or mother) or spouse veteran sustained, while serving honorably as a member of the United States armed forces during a qualifying period of armed conflict, a service-connected disability determined by the veteran's administration to constitute a one hundred percent (100%) permanent total disability.

SECTION 3. Tennessee Code Annotated, Section 49-7-102(b)(2), is amended by designating the existing language as subdivision (A) and adding the following as subdivision (B):

(B) The veteran who sustained, while serving honorably as a member of the United States armed forces during a qualifying period of armed conflict, a service-connected disability determined by the veteran's administration to constitute a one hundred percent (100%) permanent total disability must be a citizen of this state at the time the person's dependent child or spouse applies for the educational assistance benefits established in subdivision (a)(2).

SECTION 4. Tennessee Code Annotated, Section 49-7-102(b)(4), is amended by designating the existing language as subdivision (A) and adding the following as subdivision (B):

(B) A veteran's spouse's eligibility for the educational assistance benefits established in subdivision (a)(2) terminates ten (10) years from the date on which the veteran's administration determined that the service-connected disability the veteran sustained, while serving honorably as a member of the United States armed forces during a qualifying period of armed conflict, constitutes a one hundred percent (100%) permanent total disability, or upon dissolution of the qualifying marriage.

SECTION 5. Tennessee Code Annotated, Section 49-7-102(d), is amended by designating the existing language as subdivision (1) and adding the following as subdivision (2):

(2) Notwithstanding subdivision (d)(1), the educational assistance benefits established in subdivision (a)(2) apply to all state institutions of higher education beginning with the next registration or enrollment period for the next complete term after July 1, 2025.

SECTION 6. Tennessee Code Annotated, Section 49-7-102(f), is amended by deleting the language "in which the ten-year period expires" and substituting instead the language "in which the ten-year period expires, or at the end of the term in which an order of dissolution of the qualifying marriage is entered, as applicable".

SECTION 7. This act takes effect upon becoming a law, the public welfare requiring it.